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Rule of Law: Concept, Components, and Historical Evolution

Introduction to Rule of Law

The Rule of Law is a foundational concept in constitutional jurisprudence that ensures governance according to established legal principles rather than arbitrary exercise of power. Professor Albert Venn Dicey, in his seminal work "An Introduction to the Study of the Law of the Constitution" (1885), systematically articulated the concept as it operated in England following the Glorious Revolution of 1688-89. Dicey did not create the Rule of Law; rather, he observed and documented the prevailing circumstances in England where the powers of the monarchy had been curtailed and governance was increasingly in the hands of the House of Commons—the common people. The Rule of Law is fundamentally about ensuring that everything runs by law, without any person's whims and fancies governing society.

Dicey's work was divided into three parts: "The Sovereignty of Parliament," "The Rule of Law," and a third section dealing with constitutional conventions. His book was divided into three parts. The first was "The Sovereignty of Parliament", something which Dicey took to be fundamental, total and beyond challenge. However, when some three decades later Irish home rule returned to Parliament's agenda, Dicey changed his mind about its omnipotence. In the final edition of The Law of the Constitution in 1915 he lamented that parliamentary sovereignty had fallen prey to the party system.

The Glorious Revolution of 1688-89

The Glorious Revolution of 1688-89 was a watershed moment in British constitutional history that established the supremacy of Parliament over the British monarchy. The Revolution began on 5 November 1688 when William of Orange, backed by a 21,000-strong army, took the unprecedented step of invading England. Uprisings in the north soon followed, and by the end of 1688 James II had fled to France, where Louis XIV offered the king-in-exile his protection.

The revolution was driven by deep-seated fear of Catholicism and the belief that Catholics were actively plotting the overthrow of church and state. This conspiracy theory was given credibility by genuine Catholic subterfuge, most notably the Gunpowder Plot of 1605. James II's authority appeared secure when he succeeded to the throne in February 1685, but initial support for the king ebbed away as it became clear that he wished to secure not only freedom of worship for Catholics, but also the removal of the Test and Corporation Acts so that they could occupy public office.

In the months following James's departure from England, established royal practices were overturned. A Convention Parliament decided that James had effectively abdicated, William and his wife Mary were declared joint monarchs, and a minor Dutch prince became King of England. The Bill of Rights (1689) determined that the monarch must be Protestant, and the Act of Settlement (1701) went further and demanded that whoever inherited the Crown must "joyn in communion with the Church of England as by law established".

The Glorious Revolution ultimately established the supremacy of parliament over the British monarchy, though the events of 1688 constituted a foreign invasion of England by the Dutch Republic. While bloodshed in England was limited, the revolution was only secured in Ireland and Scotland by force and with much loss of life. The revolution also fostered the growth of slavery by ending the Royal African Company's monopoly on the trade in 1698. For the non-white inhabitants of the British Atlantic empire, the Glorious Revolution represented not the broadening of freedom but the expansion of servitude.

The Three Components of Dicey's Rule of Law

Dicey's formulation of the Rule of Law incorporated three distinct though kindred ideas:

1. Supremacy of Law

The first and most fundamental component of Dicey's Rule of Law is the Supremacy of Law. This principle means that no man shall be punished or made to suffer in body or goods except for the violation of the law, and such violation must be established in an ordinary court of the land and in an ordinary legal manner. The government cannot punish anyone merely by its own fiat, and persons in authority in Britain do not enjoy wide, arbitrary or discretionary powers. Dicey asserted that wherever there is discretion there is room for arbitrariness.

The concept was necessary because prior to its establishment, people acted according to their own will. The Anwar Ali Sarkar case exemplifies the violation of this principle. In that case, the State Government had unguided discretion to decide which cases would be sent for speedy trial, without any rational basis. One Collector might send a rape case for speedy trial because it received good publicity, while another Collector might ignore a similar case. Such individual discretion violates the Supremacy of Law because the law itself should specify what kind of cases will be sent for speedy trial.

2. Equality before Law

The second component of Dicey's Rule of Law is Equality before Law, which means that no man is above the law and everyone, whatever his condition or rank, is subject to the ordinary laws of the land. Every person can sue or be sued in a court of law. Dicey was not concerned with equality in a general sense; rather, he was concerned with limiting the power of officials in favor of individual legal rights. According to Dicey, this is best achieved if everyone is subject to the same law administered by ordinary courts.

Dicey had two specific ideas in mind: first, that officials as such enjoy no special protection, so that if an official abuses his power, he is personally liable to anyone whose property rights or personal freedom he violates just as if he were a private citizen; and second, that disputes between government and citizen are settled in the ordinary courts according to ordinary law rather than in a special governmental court.

The framers of the Indian Constitution incorporated this concept into Article 14, which states that "The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India." The principle of Equality before Law is distinct from Equal Protection of Laws, which was borrowed from the American constitutional tradition.

3. Predominance of Legal Spirit

The third component of Dicey's Rule of Law is the Predominance of Legal Spirit. This principle is peculiar to Britain and emphasizes that the general principles of the British Constitution and especially the liberties of the individual are judge-made—that is, the result of judicial decisions determining the rights of private persons in particular cases brought before the courts from time to time. The British Constitution is judge-made and the rights of the

individual form part of and pervade the Constitution. The rights of individuals are part of the Constitution because these are secured by the courts. British Constitutional Law is not the source, but the consequence, of the rights of individuals as defined by the courts.

Referring in particular to the Habeas Corpus Act, Dicey said that it was "worth a hundred Constitutional articles guaranteeing individual liberty." Dicey accepted that there was rule of law in the U.S.A. because there the rights declared in the Constitution could be enforced, and the Constitution gave legal security to the rights declared.

The Predominance of Legal Spirit ensures that legal remedies are available to all individuals and that the spirit of law, rather than mere technicalities, guides judicial decision-making. This principle ensures that the ordinary courts and the ordinary law of the land should be supreme, and that there should be no arbitrary or wide discretionary powers.

John Austin and The Province of Jurisprudence Determined

A significant anecdote from legal history concerns John Austin (1790-1859), who was the first professor of jurisprudence at the University of London. His classic work, "The Province of Jurisprudence Determined," was derived from his course lectures and first appeared separately from the Lectures in 1832. Austin took great pride in his ability to clearly delineate the study of law, taking a surgical approach and creating a stripped-down view of material central to the study of jurisprudence.

The story of how Austin's book came to be published is particularly noteworthy. After Austin passed away, his wife found some of his notes on his desk. She was also educated and recognized the value of these notes—the lecture materials Austin had prepared for his courses. She approached a publisher, and the book was published posthumously. Had there not been his wife's intervention, Austin's work might not have achieved the recognition it did. This is why Austin is regarded as the Father of Analytical Jurisprudence, even though Jeremy Bentham was senior to him.

Rule of Law versus Rule by Law

A critical distinction exists between Rule of Law and Rule by Law. Rule by Law means that work happens according to whatever law exists, regardless of the quality or justice of that law. For instance, in some countries, women may be denied education or forced to follow oppressive practices under existing laws. These laws provide order and rules, but they lack the essential qualities of justice, fairness, and reasonableness. Such laws are an example of Rule by Law, not Rule of Law.

Rule of Law, by contrast, requires that the law itself must be just, fair, and reasonable. The law must have inherent quality and must respect fundamental rights and human dignity. This distinction is significant because a society may be governed by laws, yet those laws may be oppressive and arbitrary. The Rule of Law demands not merely the existence of law, but the existence of good law that respects human rights and promotes justice.

Significance and Application

Dicey's thesis has been criticized from various angles, but the basic tenet expressed by him is that power is derived from and is to be exercised according to law. In substance, Dicey's emphasis is on the absence of arbitrary power and discretionary power, equality before law, and legal protection to certain basic human rights. These ideas remain relevant and significant in every democratic country even today.

In India, the Supreme Court has interpreted Article 14 to encompass not only Equality before Law and Equal Protection of Laws but also the principle of non-arbitrariness. As established in E.P. Royappa v. State of Tamil Nadu, arbitrariness is the antithesis of equality, and any arbitrary action violates Article 14. The broad emphasis of Rule of Law is on absence of any center of unlimited or arbitrary power in the country, on proper structuration and control of power, absence of arbitrariness in the government.

Government intervention in many daily activities of citizens is on the increase, creating a possibility of arbitrariness in State action. Rule of Law is useful as a counter to this situation because the basic emphasis of the Rule of Law is on exclusion of arbitrariness. Lawlessness and unreasonableness on the part of the government are the antithesis of the Rule of Law.

In Kesavananda Bharati v. State of Kerala, the Supreme Court enunciated the rule of law as one of the most important aspects of the doctrine of basic structure. The rule of law in one form or another is a criterion of civilization.